

Healthcare Cloud Analytics and Data Processing Agreement

HEALTHCARE CLOUD ANALYTICS AND DATA PROCESSING AGREEMENT **Agreement Number:**
HCA-2027-DPA-9021 **Effective Date:** July 1, 2027 **Initial Term Expiration:** June 30, 2031
Customer: Meridian Health Network, a nonprofit integrated healthcare system **Vendor:**
Helix Cloud Analytics, Inc., a Delaware corporation **Covered Data:** Protected Health
Information, personally identifiable information, clinical operational data, claims extracts,
patient engagement data, and de-identified analytics outputs **Hosting Region:** United States
only unless Meridian gives prior written approval **Governing Law:** State of Washington and
applicable federal healthcare privacy law --- ## ARTICLE I: PURPOSE AND REGULATORY CONTEXT ###
Section 1.01: Purpose Meridian engages Helix to provide a cloud analytics platform for care
coordination, revenue cycle optimization, utilization management, population health reporting,
prior authorization workflow, and clinical quality dashboards.
Helix will host, process, transform, analyze, and return Covered Data under strict privacy,
security, uptime, reporting, and audit requirements.
Section 1.02: Business Associate Status To the extent Helix creates, receives, maintains,
or transmits Protected Health Information on behalf of Meridian, Helix acts as a business
associate.
The Parties incorporate the Business Associate Addendum in Exhibit A.
If a term in this Agreement conflicts with the Business Associate Addendum, the stricter
privacy or security requirement controls.
Section 1.03: No Sale or Secondary Use Helix shall not sell Covered Data, use Covered Data
for advertising, use Covered Data for unrelated model training, combine Covered Data with
third-party customer data, or create external benchmarks without Meridian's express written
approval.
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ingestion pipelines, data normalization, analytics dashboards, API access, role-based access
controls, audit logging, data quality rules, configurable alerting, export tools, and managed
support.
Section 2.02: Implementation Implementation begins July 15, 2027.
Production go-live must occur no later than January 15, 2028.
Helix shall complete data mapping, interface testing, security review, user acceptance testing,
and administrator training before go-live.
Section 2.03: Data Sources Covered Data may include ADT feeds, claims extracts, encounter
files, provider rosters, care gap files, referral data, lab result metadata, medication
adherence feeds, quality measure extracts, authorization records, and patient outreach
activity.
Section 2.04: Support Tiers | Severity | Definition | Response Time | Restoration Target |
|---|---|---|---| | Severity 1 | Platform unavailable, PHI exposure suspected, or patient
safety workflow blocked | 15 minutes | 4 hours | | Severity 2 | Major function unavailable or
data feed failure affecting more than one facility | 1 hour | 8 hours | | Severity 3 | Minor
function degraded or single facility affected | 4 business hours | 3 business days | | Severity
4 | General question, cosmetic issue, enhancement request | 2 business days | Mutually
scheduled | --- ## ARTICLE III: FEES AND PAYMENT ### Section 3.01: Subscription Fees Meridian
shall pay an annual subscription fee of \$3,600,000 for the first contract year.
Fees increase by 3% annually unless Helix misses the uptime KPI or data quality KPI in the
prior contract year, in which case the annual increase is waived.
Section 3.02: Implementation Fees Implementation fees are fixed at \$850,000 and payable in
four milestones: | Milestone | Due Date | Amount | |---|---|---| | Project kickoff and
architecture approval | August 1, 2027 | \$150,000 | | Interface build complete | October 15,
2027 | \$250,000 | | Security review and UAT complete | December 15, 2027 | \$250,000 | |
Production go-live | January 15, 2028 | \$200,000 | ### Section 3.03: Invoices Helix shall
invoice annually in advance for subscription fees and monthly in arrears for approved
professional services.
Meridian shall pay undisputed invoices within forty-five days after receipt.
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measured monthly.
Service Credits are applied to the next invoice.
Repeated KPI failures may trigger Corrective Action Plans, enhanced audit rights, fee increase
waiver, or termination.
Section 4.02: KPI-1 Platform Availability **Target:** 99.95% monthly availability,
excluding pre-approved maintenance windows.
Measurement: Availability is measured from Meridian user locations and Helix synthetic

****Target:**** 98.5% of scheduled inbound feeds processed and visible in the platform within two hours after receipt.

****Critical Feeds:**** ADT, emergency department census, prior authorization, and care gap feeds must process within thirty minutes.

****Penalty:**** \$7,500 for each Critical Feed delay over thirty minutes after the first two delays in a month; \$25,000 if total feed freshness falls below 95.0%.

Section 4.04: KPI-3 Data Quality Accuracy ****Target:**** 99.7% record-level transformation accuracy for mapped fields.

****Measurement:**** Monthly sampling by Meridian data governance team and automated validation rules.

****Penalty:**** \$10,000 per 0.1% below 99.7%.

Accuracy below 99.0% requires a Corrective Action Plan within five business days.

Section 4.05: KPI-4 API Latency ****Target:**** 95th percentile API response time below 700 milliseconds for standard queries and below 2,500 milliseconds for complex analytics queries.

****Penalty:**** \$5,000 for each business day in which standard API latency exceeds 700 milliseconds for more than sixty consecutive minutes.

Section 4.06: KPI-5 Security Patch Timeliness ****Target:**** Critical vulnerabilities patched within seventy-two hours, high vulnerabilities within seven days, medium vulnerabilities within thirty days.

****Penalty:**** \$15,000 per missed critical patch deadline and \$5,000 per missed high patch deadline.

Failure to patch a critical vulnerability within seven days is a Critical Security Breach.

Section 4.07: KPI-6 Support Resolution ****Target:**** 95% of Severity 1 tickets restored within four hours and 90% of Severity 2 tickets restored within eight hours.

****Penalty:**** \$10,000 for each Severity 1 ticket missing the restoration target and \$3,000 for each Severity 2 ticket missing the restoration target.

Section 4.08: KPI-7 Audit Log Completeness ****Target:**** 100% of user access, export, delete, privilege change, failed login, API access, and administrative configuration events logged.

****Penalty:**** Any material audit log gap lasting more than thirty minutes is a Critical Security Breach.

Non-material gaps trigger a \$20,000 credit per incident.

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Section 5.02: Security Incident Notice Helix shall notify Meridian within four hours after discovering a suspected or confirmed Security Incident.

Helix shall provide a preliminary written incident report within twenty-four hours and a final root cause report within ten business days after containment.

Section 5.03: Breach Notification Support If a Breach of Unsecured Protected Health Information occurs, Helix shall provide all information reasonably required for Meridian's legal notification obligations within twenty-four hours after request, including affected individuals, data elements, timeline, mitigation, and evidence preservation.

Section 5.04: Subprocessors Helix may use only subprocessors listed in Exhibit B. Helix must provide sixty days' notice before adding a subprocessor.

Meridian may object on security, privacy, regulatory, or operational grounds.

Section 5.05: Data Segregation Helix shall logically segregate Meridian data from other customer data.

Production data may not be copied to development or test environments unless masked, tokenized, or otherwise de-identified under Meridian-approved procedures.

Section 5.06: Access Controls All Helix workforce access to Covered Data must be role-based, approved by a manager, logged, reviewed quarterly, and revoked within twenty-four hours after job change or termination.

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Section 6.02: Monthly Service Review By the tenth calendar day of each month, Helix shall provide a monthly service review containing KPI results, Service Credit calculations, support ticket metrics, patch status, access review exceptions, subprocessor changes, incident summaries, and roadmap risks.

Section 6.03: Quarterly Compliance Review Each quarter, Helix shall review HIPAA

objective of fifteen minutes for production services.

Disaster recovery tests must be conducted twice per year and reported to Meridian within fifteen days.

Section 7.02: Backup Requirements Production data must be backed up at least every four hours, encrypted, integrity tested monthly, and stored in geographically separate facilities within the United States.

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Section 8.02: Indemnity Helix shall indemnify Meridian for third-party claims, regulatory penalties, patient notification costs, credit monitoring, forensic investigation, and reasonable attorneys' fees arising from Helix's breach of privacy or security obligations, negligence, willful misconduct, intellectual property infringement, or violation of law.

Section 8.03: Liability Cap The general liability cap is two times annual fees paid or payable.

The cap is five times annual fees for privacy breach, security breach, confidentiality breach, regulatory fines caused by Helix, indemnity claims, and willful misconduct.

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- Data Quality Accuracy below 99.0% for two consecutive months.

- A Critical Security Breach.

- Failure to meet RTO in a disaster recovery event.

- Unauthorized use or sale of Covered Data.

- Material breach uncured thirty days after written notice.

Section 9.02: Termination Assistance For up to twelve months after termination, Helix shall provide data export, transition support, interface documentation, schema mapping, audit logs, and cooperation with Meridian's successor vendor.

Section 9.03: Data Return and Destruction Within thirty days after termination assistance ends, Helix shall return all Covered Data in a mutually agreed format and destroy remaining copies, except legally required archival copies.

Destruction certification is due within fifteen days after completion.

--- ## EXHIBIT A: BUSINESS ASSOCIATE ADDENDUM SUMMARY Helix shall use PHI only as permitted by Meridian, report breaches, ensure subcontractors agree to equivalent restrictions, make PHI available for access and amendment, support accounting of disclosures, make internal practices available to regulators, and return or destroy PHI at termination.

EXHIBIT B: APPROVED SUBPROCESSORS Approved subprocessors are limited to cloud infrastructure hosting, managed database monitoring, email notification delivery, security scanning, and support ticketing vendors listed in Meridian's vendor risk register.

EXHIBIT C: REQUIRED INTEGRATIONS Required integrations include HL7 ADT, FHIR API, SFTP claims extracts, SSO through SAML 2.0, SCIM user provisioning, SIEM log forwarding, and API gateway connectivity.